

Procedure No: EXP202311683 (PS/00516/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 28/06/23, Mr. A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection against the entity, ASESORÍA Y PROGRAMACIÓN PROFESIONAL, S.L. with CIF: B96506126, for the alleged violation of Law 34/2002 of 11-07, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are that, after being registered in the APP advertising bulletin by providing the email as a contact method in a store, he attempted repeatedly to unsubscribe through the link provided in the emails of said bulletin but, despite receiving confirmation by email, he continued to receive advertising emails. Along with the complaint, the following documentation is attached:

- Dated 16/06/23, a copy of the email sent by the respondent, from the email address: ***EMAIL.1, to the complainant's address: ***EMAIL.2, with the subject: "Unsubscribe from APP Bulletin," confirming the unsubscription from the list of recipients of the APP Bulletin.
- Dated 22/06/23, a copy of the email sent by the complainant from the address: ***EMAIL.2, to the address: ***EMAIL.3, indicating that, after unsubscribing following the link and form specified in the bulletin emails, he is still receiving unwanted advertising emails.
- Dated 28/06/23, a copy of the email sent by the respondent from the address: ***EMAIL.4, to the complainant's email address: ***EMAIL.2, containing an advertising message.

SECOND: On 04/09/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the Agency was requested to analyze and report, within one month, on what was stated in the complaint.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications and Electronic Address Service, was sent to the respondent on 18/09/23 via the electronic notification service, "NOTIFIC@", being accepted by the respondent on 18/09/23, with no response to this transfer document.

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THIRD: On 28/09/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 07/12/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity ASESORÍA Y PROGRAMACIÓN PROFESIONAL, S.L. with CIF: B96506126, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d) of the same regulation.

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at the time of the opening and without prejudice to what results from the instruction, would amount to a total of 5,000 euros (five thousand euros).

FIFTH: The aforementioned opening agreement was notified in accordance with the rules established in the LPACAP, and the respondent submitted a written statement on 29/01/24, in which the following was indicated:

“- On 16-6-2023, the client requests to unsubscribe from the mailing list intended for sending commercial communications from APP Informática; the client uses the link at the bottom of the commercial emails and requests the unsubscription.

- On 16-6-2023, he receives the automatic response from the unsubscription mechanism of APP

Informática informing him that the request to unsubscribe the address ***EMAIL.2 has been removed from the list.

- On 22-6-2023, the client warns us that he continues to receive emails from APP Informática. We internally verify that the unsubscription has been carried out correctly and that ***EMAIL.2 does not exist in our list of addresses.

- On 29-6-2023, the client warns us that he will file a complaint with the AEPD since he continues to receive commercial bulletins. We verify that the unsubscription mechanism has worked perfectly and manually check the list of email addresses to ensure that, indeed, the address ***EMAIL.2 does not exist; despite this, we conduct several searches and discover that it exists: ***EMAIL.2.

- On 30-6-2023, we write to the client indicating that the address ***EMAIL.2 exists, and that it may be that he has registered with this address and not with ***EMAIL.2, as he has been indicating, and for this reason, he still receives emails.

- On 30-6-2023, the client responds that it is possible that he is also registered with this second address and that if so, he also requests the cancellation of the same to stop receiving further communications.

- On 30-6-2023, we proceed to manually remove the address ***EMAIL.2 from the mailing list to avoid the client having to use any form or further inconvenience; we inform him of this action for his knowledge, conduct internal tests with both addresses, and confirm that, indeed, the unsubscription mechanism of the bulletin has worked perfectly and the problem is..."

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This was due to the fact that the client registered with an account different from the one used to request the cancellation. We cordially concluded by indicating that if there were any issues, they should let us know.

Hello, Alex: I have checked the cancellation with my address and it works; I have manually deleted both of your addresses. I hope we do not bother you anymore, but please, if you receive anything, let me know and we will see what might be happening. Best regards and apologies again.

On 22/06/23 at 13:31, A.A.A. < ***EMAIL.2 > wrote:

Dear APP-Informatica, I would like to notify you that, after unsubscribing using the link and form specified in the emails of your newsletter, I am still receiving unwanted advertising emails. I have performed the operation several times, so there may be a problem with the subscription cancellation form. I kindly request that you rectify this and proceed to remove my email from any distribution list for commercial purposes. I trust that this email suffices as notification. Best regards,

On 29/06/2023 at 13:53, A.A.A. wrote:

Greetings again, After a week has passed since my last message without receiving a response from you, I regret to inform you that I have proceeded to file a complaint with the AEPD.

I would like to clarify that, despite considering myself a satisfied customer for years at several of your franchises, I feel compelled to take action for the following reasons:

1. I was subscribed to this newsletter without explicit consent, by providing my email address as a contact method.
2. The cancellation form for commercial communications does not work as it should, and I understand from the message presented that this is not something new, unknown, or sporadic, so I assume that it does not align with your interests to fix it, contrary to what is stipulated in the Data Protection Law.
3. Lastly, even being aware that the deadlines for responding to complaints related to data protection have not yet been met, the lack of any response from you after I took the trouble to communicate the problem to the email provided for that purpose is unacceptable to me. My intention with this complaint is not to cause you any harm, and that is why I take the trouble to notify you hereby and with sufficient time to rectify the problem. I hope this serves as sufficient warning and that you take appropriate measures to avoid any sanctions of any kind.

Best regards, A.A.A.

On 30/06/23 at 10:51, B.B.B. wrote:

We have also seen that there is an address: ***EMAIL.2 that could be the one causing the newsletters to be sent...

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On 30/06/2023 at 12:17, A.A.A. wrote:

Hello B.B.B, Thank you for the response. That must be the problem. As I said, I did not register myself for the newsletter, so they must have written the email without the dot (which I use as a separator but is ignored for practical purposes). However, I would like to point out that the cancellation form shows this message regardless of whether the email is registered in the database: I understand that the previous message was obtained through another form. I have requested cancellation for the email with that format. I hope this has been made effective and resolved. Best regards and thank you, A.A.A.

SIXTH: On 13/02/24, a resolution proposal was made in the sense that the Director of the AEPD should sanction the complained party for violating the provisions of Article 21 of the LSSI, classified as minor in Article 38.4.d), with a fine of 5,000 euros (five thousand euros).

NINTH: On 16/02/24, the complained party submitted a written statement of allegations to the resolution proposal in which, among other matters, they state the following:

Dear Sirs: We are writing to you regarding the sanction proposal received, with surprise and concern. We wish, through this letter, to clarify a misunderstanding that has arisen due to a peculiarity in the email service of one of our users, which has inadvertently led to this situation.

Origin of the Misunderstanding: The user voluntarily subscribed to our newsletter using the email address ***EMAIL.2 during their visit to one of our physical stores. It is important to highlight that our company only obtains email addresses directly from customers in our physical locations, without resorting to methods that may be considered inappropriate or invasive for capturing email addresses.

Confusion When Unsubscribing: Subsequently, the user attempted to unsubscribe from the newsletter, providing a slightly different email address, ***EMAIL.2. We acted in good faith and proceeded to unsubscribe the provided address, following our commitment to respect our customers' communication preferences.

Particularity of Gmail: The continued receipt of emails by the user is due to a specific feature of Gmail's email service, which treats both addresses as equivalent, a situation that does not replicate in other email services. This peculiarity of Gmail, unknown to the user, was the root of the misunderstanding.

Resolution of the Problem: Once the user communicated their dissatisfaction to us again, we conducted a manual investigation and discovered the...

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discrepancy in the email addresses. We proceeded to assist the user by unsubscribing them with the correct address, which satisfactorily resolved the misunderstanding.

We understand the importance of data protection and respect for our clients' communication preferences. We want to assure you that at no time has it been our intention to infringe regulations or cause inconvenience to our users. This incident was the result of a confusion generated by technical particularities beyond our direct management.

Therefore, we respectfully request that the proposed sanction be reconsidered, taking into account the involuntary nature of this misunderstanding and the proactive actions we have taken to resolve it satisfactorily.

We appreciate your attention to this matter and remain at your disposal to provide any additional information or clarification that may be necessary.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

Single: According to the claim document, after being subscribed to the APP advertising bulletin by providing the email as a contact method in a store, the user attempted repeatedly to unsubscribe through the link provided in the emails of said bulletin but despite receiving confirmation by email, they continued to receive advertising emails. To corroborate this claim, the following documentation is attached:

- Dated 06/16/23, a copy of the email sent by the respondent from the email address: ***EMAIL.1, to the claimant's address: ***EMAIL.2, with the subject: "Unsubscribe APP Bulletin," confirming the unsubscription from the list of recipient addresses of the APP Bulletin.
- Dated 06/22/23, a copy of the email sent by the claimant from the address: ***EMAIL.2, to the address: ***EMAIL.3, indicating therein that, after unsubscribing following the link and form specified in the bulletin emails, they are still receiving unwanted advertising emails.
- Dated 06/28/23, a copy of the email sent by the respondent from the address: ***EMAIL.4, to the claimant's email address: ***EMAIL.2, containing an advertising message: "You're going to be amazed, the best MSI offers are here (...)"

LEGAL GROUNDS

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Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations presented:

According to the respondent's statements in their allegations to the proposed resolution, the origin of the misunderstanding lies in the fact that the user voluntarily subscribed to their newsletter using the email address ***EMAIL.2. Subsequently, the user attempted to unsubscribe from the bulletin, providing a slightly different email address, ***EMAIL.2, proceeding to unsubscribe the provided address, that is, the address ***EMAIL.2.

The respondent continues by indicating that the continued receipt of emails by the user is due to a specific characteristic of Gmail's email service, which treats both addresses as equivalent (***EMAIL.2 and ***EMAIL.2), a situation that does not replicate in other email services. This particularity of Gmail, unknown to the user, was the root of the misunderstanding.

Well, first of all, it should be noted that if the claimant provided the email address ***EMAIL.2 to subscribe to the newsletter and then, when requesting to unsubscribe from the system, provided a different email, ***EMAIL.2, although the entity, "acting in good faith," proceeded to unsubscribe the first address (***EMAIL.2), it should never have used the second email address to continue sending them advertising. This is so because, from the documentation presented by the claimant, the following

is evident:

- On 06/16/23, the respondent sends an email from the email address: ***EMAIL.1, to the claimant's address: ***EMAIL.2, with the subject: "Unsubscribe APP Bulletin," confirming the unsubscription from the list of recipient addresses of the APP Bulletin.
- On 06/22/23, the claimant sends an email from the address: ***EMAIL.2 to the address: ***EMAIL.3, indicating therein that, after unsubscribing...

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of unsubscribing by following the link and form specified in the newsletter emails, still continues to receive unwanted advertising emails. Therefore, it is established that the claimant received on 16/06/23, at their address: ***EMAIL.2, an email sent from the address: ***EMAIL.1, with the subject: "Unsubscribe Newsletter APP", confirming the unsubscription from the list of recipients of the APP Newsletter, which evidences that the email address that was to be unsubscribed was ***EMAIL.2.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services not remunerated by their recipients, to the extent that they constitute an economic activity for the service provider.

According to section d) of the aforementioned Annex, a recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

IV

Classification of the infringement.

The fact that the respondent sends advertising emails to the claimant having requested that no further advertising be sent and having confirmed that the respondent would not send them again constitutes a violation of the provisions established in Article 21 of the LSSI, as it states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

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2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data

for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

V

Graduation of Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria, established in Article 40 of the LSSI:

- The existence of intentionality (section a), since the claimant had requested that no further commercial communications be sent to them and the respondent had acknowledged receipt of that request, confirming that it had been addressed, and despite this, subsequently sent a new advertising email.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI, without prejudice to what results from the instruction of the procedure.

RESOLVES:

FIRST: TO IMPOSE on the entity ASESORÍA Y PROGRAMACIÓN PROFESIONAL, S.L. with CIF: B96506126, for infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, a fine of €5,000 (five thousand euros).

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SECOND: NOTIFY this resolution to ASESORÍA Y PROGRAMACIÓN PROFESIONAL, S.L.

THIRD: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in art. 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es